

Shakuntala Devi And Another v. State of U.P. And 3 Others

High Court of Judicature at Allahabad · Division Bench · 18 April 2024 · 2024:AHC:67607-DB · Writ-C No. 7239 of 2024 · **Disposed; recovery withdrawn and cause of action did not survive**

HEADNOTE

Writ against a demand notice dated 20.01.2021 and a recovery certificate dated 11.07.2022 for dues in a case of theft of electricity. On 21.03.2024 the Division Bench recorded, from the Electricity Department's instructions, that the provisional-assessment notice issued on 23.01.2021 fixed 04.02.2021, before expiry of the fifteen days stipulated under clause 6.8 of the U.P. Electricity Supply Code, 2005 for filing an objection. The DISCOM thereafter withdrew the impugned recovery by a communication dated 28.03.2024. On 18.04.2024 the petition was disposed of as the cause of action did not survive.

FACTUAL SUMMARY

Shakuntala Devi and another writ-challenged a demand notice of 20 January 2021 and a recovery certificate of 11 July 2022 for electricity dues alleged as theft. The Department sought time to show compliance with the Electricity Supply Code, 2005. Its instructions showed that the provisional-assessment notice dated 23 January 2021 fixed 4 February 2021 for objection, before the fifteen days under clause 6.8 had expired. The DISCOM then withdrew the recovery by a communication of 28 March 2024 to the Additional District Magistrate (Finance and Revenue), Prayagraj.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

fifteen-day objection period on provisional assessment

HOLDING

Order dated 21.03.2024: from the Electricity Department's instructions it was clear that the notice of provisional assessment issued on 23.01.2021 fixed 04.02.2021, even before expiry of the fifteen days stipulated under clause 6.8 for filing an objection, and the Managing Director of the DISCOM was to be informed so that he could respond. Order dated 18.04.2024: counsel for the DISCOM stated that the impugned recovery had been withdrawn and a communication dated 28.03.2024 to the A.D.M. (Finance and Revenue), Prayagraj, was placed before the Court; the cause of action did not survive and the petition was disposed of. ¶ 1

PRINCIPLE TAGS

6.8-procedure-mandatory The Bench treated the fifteen days under clause 6.8 as the time stipulated for an objection to the provisional assessment, and recorded that the notice dated 23.01.2021 fixing 04.02.2021 did not allow that period to expire. It did not quash the assessment; after the DISCOM withdrew the recovery the writ was disposed of without a merits decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER FIXING THE OBJECTION DATE BEFORE EXPIRY OF THE FIFTEEN DAYS UNDER CLAUSE 6.8 VITIATED THE PROVISIONAL ASSESSMENT OR THE RECOVERY CERTIFICATE

The defect was recorded on 21.03.2024 and the Managing Director was to respond. The DISCOM withdrew the recovery on 28.03.2024, and the writ was disposed of on 18.04.2024 because the cause of action did not survive. ¶ 1

